

COLONIAL MOBILE MANOR PROSPECTUS

1. THIS PROSPECTUS CONTAINS VERY IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND YOUR FINANCIAL OBLIGATIONS IN LEASING A MOBILE HOME LOT. MAKE SURE THAT YOU READ THE ENTIRE DOCUMENT AND SEEK LEGAL ADVICE IF YOU HAVE ANY QUESTIONS REGARDING THE INFORMATION SET FORTH IN THIS DOCUMENT.
2. THE STATEMENT CONTAINED HEREIN ARE ONLY SUMMARY IN NATURE. A PROSPECTIVE LESSEE SHOULD REFER TO ALL REFERENCES, ALL EXHIBITS HERETO, THE CONTRACT DOCUMENTS, AND SALES MATERIALS.
3. ORAL REPRESENTATIONS SHOULD NOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE PARK OWNER OR OPERATOR. REFER TO THIS PROSPECTUS (OFFERING CIRCULAR) AND ITS EXHIBITS FOR CORRECT REPRESENTATIONS.
4. UPON DELIVERY OF THE PROSPECTUS TO A PROSPECTIVE LESSEE, THE RENTAL AGREEMENT IS VOIDABLE BY THE LESSEE FOR A PERIOD OF FIFTEEN (15) DAYS.

Page 1 of 6



TABLE OF CONTENTS

	<u>PAGE NUMBER</u>
SUMMARY	1
NAME AND ADDRESS OF PARK	3
RECEIPT OF NOTICES AND DEMANDS	3
PARK PROPERTY DESCRIPTION	3
RECREATIONAL AND COMMON FACILITIES	3 - 4
PARK MANAGEMENT AND MAINTENANCE	4
MOBILE HOME OWNER REQUIRED IMPROVEMENTS	4
UTILITIES AND OTHER SERVICES	4 - 5
INCREASES IN RENT AND OTHER CHARGES	5 - 6
PARK RULES AND REGULATIONS	6
ZONING CLASSIFICATION	6
ZONING	6
EXHIBITS	6

PROSPECTUS FOR

1. NAME AND ADDRESS OF PARK

Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

2. RECEIPT OF NOTICES AND DEMANDS

The person authorized to receive notices and demands on the Park owner's behalf is:

The Park Manager
Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

3. PARK PROPERTY DESCRIPTION

A. Lots, Set-Backs, and Minimum Separation between Mobile Homes

235 Lots in the Park
Approximate size: 50' x 75'

The Set-Back requirement is 10 foot, with 10 foot separation distance between mobile homes.

B. Shared Facilities

The maximum number of lots using shared facilities is five hundred (500).

4. RECREATION AND COMMON FACILITIES

The Mobile Home Park has a clubhouse, which is located at the front of the Park, and which has a single room of approximately 4,300 square feet, with a capacity of four hundred (400) persons. The clubhouse is used for social activities.

DAYS AND HOURS OF OPERATION

The clubhouse is open seven (7) days a week, from 9:00 a.m. to 10:00 p.m., and its use must be approved by Park management.

PERSONAL PROPERTY

There is no personal property available for the mobile home owners.

FUTURE IMPROVEMENTS

All improvements to the Mobile Home Park are now complete.

5. PARK MANAGEMENT AND MAINTENANCE

The manager of the Mobile Home Park is responsible for the maintenance and operation of the Park. The manager's office is in the clubhouse, and will have posted hours and days of operation. Any questions concerning Park operations should be directed to the Park manager.

6. MOBILE HOME OWNER REQUIRED IMPROVEMENTS

As a condition of their occupancy in the Mobile Home Park, new residents, after June 4, 1984, must install the following within forty (40) days after the home is placed on the lot:

Remove hitch, skirt home with aluminum or brick, concrete driveway to the street (12' width), aluminum carport (minimum 12' x 32'), utility shed build to the roof of the carport (minimum 6' x 8'), concrete/brick patio with aluminum cover and screened (minimum 100 square feet), concrete or brick steps at each entrance to the home, fully sodded lawn, and a brick flower planter in front of the home (minimum size 2' x 8' x 2').

7. UTILITIES AND OTHER SERVICES

Water is provided by the City of Palmetto and is billed directly to the mobile home owner. The home owner is responsible for any repairs to the home's water spigots and/or water line from the home to the main line. Park owner is responsible for the maintenance of the main line. The utility charge is not included in the lot rental amount.

SEWAGE

Sewage disposal is provided by the City of Palmetto, and is billed to the mobile home owner. Sewer disposal fees are not included in the monthly lot rental amount. The in-ground connection and the sewer line from the home to the main line are the mobile home owner's responsibility. The Park owner is responsible for the maintenance of the

main line.

WASTE DISPOSAL

Garbage and trash collection are provided curbside by the City of Palmetto and is billed to the mobile home owner, and are not included in the lot rental amount.

STORM DRAINAGE

Any storm drains are provided by and maintained by the Mobile Home Park by natural run-off.

ELECTRICITY

Electricity is provided by Florida Power & Light Company, which bills each home owner directly. Florida Power & Light is responsible for any main electrical lines. The home owner is responsible for the electric bill and for the electrical lines to the home or any connection outside the home, including the utility shed connections, breaker and outside receptacles. The cost of electricity is not included in the lot rental amount.

CABLE TELEVISION

Cable TV is not available.

8. INCREASES IN LOT RENTAL AMOUNT

The current lot rental amount of \$_____ is in effect until _____. At the end of the period, the lot rental amount and other charges may be increased with ninety (90) days notice to the home owner. Factors which affect lot rental amount are charges for water, sewer, garbage, trash removal, maintenance, repairs, gas, electricity, insurance, office, telephone, management, television service, taxes, licenses, government fees, accounting fees, legal fees, and the value of the Park. An increase in one or more of the factors may result in an increase in the home owner's lot rental amount. The lot rental amount may be raised a minimum of \$25.00 per month and up to a maximum of \$25.00 per month plus eighteen (18) times the Consumer Price Index (CPI) per month, whichever is greater. The CPI is the U.S. Department of Labor, U.S. City Average, All Urban Consumers, 1976 = 100, or in the event of the discontinuation of publication of the CPI, then an alternative index generally accepted as the replacement index for the CPI.

The lot rental amount is based on occupancy of 1 or 2 adults. Each additional person will be charged \$_____ per year, payable at \$_____ per month. The charge for an non-sufficient funds (NSF) check is \$_____. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35. Rent received late and after the tenth of the month is subject to additional rent of \$75. Failure by home owner to properly maintain the home's

lawn will cost the home owner \$50.00 per mowing, trimming and edging...

9. PARK RULES AND REGULATIONS

- A. Current Park Rules and Regulations - see Exhibits.
- B. Changes in Rules and Regulations

The Mobile Home Park owner shall give ninety (90) days written notice of any change in Park rules and regulations. Rules adopted as a result of restrictions imposed by government entities may be enforced prior to the expiration of the ninety (90) day period. A committee, not to exceed five (5) in number, designated by a majority of the mobile home owners shall meet with the Park owner to discuss such changes within thirty (30) days of the notice from the Park owner.

10. ZONING CLASSIFICATION

Present zoning of the Mobile Home Park is RMH. The permitted use under the zoning classification is mobile home park. No commercial or industrial use is presently allowed.

11. ZONING

The present zoning of the Mobile Home Park is RMH. The name of the zoning authority which has jurisdiction over the land comprising of Mobile Home Park is the City of Palmetto.

The Mobile Home Park owner has no plans to seek a change in the use of the land.

12. EXHIBITS

- A. Rules and Regulations of the Mobile Home Park.
- B. Lease Agreement between Park owner and mobile home owner.
- C. Copy of the Mobile Home Park layout.

13. Approved by the Florida Division of Condominiums, Time Shares and Mobile Homes on _____.

Colonial Mobile Manor

900 9th Ave. East (U.S. 301 North)

Palmetto, Florida 34221

Phone: (941) 722-3191

APPLICATION FOR RESIDENCY

Date: 2-09-25

Lot #: 1014 81

TO BE COMPLETED BY APPLICANT(S)

Name (1) Russell M. ...

Name As It Will Appear On Title

Social Security #: ... Phone: ... DATE OF Birth ...

EMAIL ADDRESS ... Driver's License #: ...

Name (2) ...

Name as it will appear on the title

Social Security #: ... Phone: ... Date of Birth ...

EMAIL ADDRESS ... Driver's License #: ...

Last Address: ...

How long did you live there? From ... Until ...

Did you rent or own? ...

If Renter, Name, Address and Phone # of Landlord: ...

Will you be the legal Owner of this Home? Yes ... No ...

Applicant(s) swear(s) that the above information is true, and applicant(s) acknowledge(s) that this Park is an age 55+ Park, with NO pets allowed. Applicant(s) agree(s) to abide by the Park Rules & Regulations. The Park Manager or Park Owner may verify the above information plus other background information, including a Law Enforcement check, to determine whether to approve this application.

Applicants are responsible for any bills (such as water bills) not paid by the seller.

The current monthly Rent, Due on the 1st of each month, for Lot # ... is \$...

Applicant: ... Date: ...

Applicant: ... Date: ...

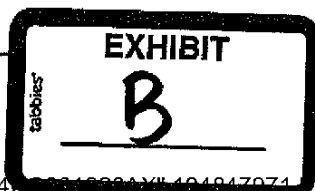
TO BE COMPLETED BY PARK MANAGER

... Residency approved. No outstanding money due from previous resident at this time.

... Money due in the amount of \$..., No approval until paid in full.

... Residency is not approved.

Park Manager: ... Date: ...



Colonial Mobile Manor

900 9th Ave East Palmetto, FL 34221
941-722-3191

Lot # 19 moved to #81

Resident Name Rosea Zuñiga

Resident Name Liborio Ortega - moved to #3

Resident Name _____
Northern Address _____

Phone/Cell (941) 580-1572 Phone/Cell (941) 565-9556

Emergency Contact Information (Please provide two contact names):

Name: Elizabeth Zuñiga Phone/Cell (941) 345-5786

Name: Erica Zuñiga Phone/Cell (941) 726-2741

I agree I have received the Rules and Regulations Effective April 1, 2016.

Resident Rosea Zuñiga Date 1-19-16

Resident Liborio Ortega Date 1-19-16

I agree I have received one (1) mail box key today. Additional keys will be \$25.00 each.

Resident: _____ Date 1-19-16

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: March 07, 2024

TO: Rosca Reyes Zuniga
and All Unknown/Unauthorized
Occupants
900 9th Ave East #81, Lot # 81
Palmetto, Florida 34221
Certified Mail: #

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

9589 0710 5270 0481 6062 86
and All Unknown/Unauthorized Occupants
_____, Lot # _____
_____, Florida _____
Certified Mail: #

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 761.61 per month.

You have failed to pay all the past due lot rental amounts for the months of Dec 2023 thru March, 2024, in the amount of \$ 2992.13, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 2992.13, payable to the address above.

- Rent on Mar 1, 2024 to Mar 31, 2024 in the amount of \$761.61
- Late Fee on Mar 1, 2024 to Mar 31, 2024 in the amount of \$45.00
- Last month balance in the amount of \$2185.52

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before March 14, 2024, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.



COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: March 07, 2024

BY: C. S. Peaks
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave East #81, Lot # 81)

POSTED ON: 3-7-24 @ 12:45 pm
(date/time)

POSTED BY: C. S. Peaks
(Employee Signature)

Colonial Manor MHC Holdings, LLC

vs.

Rosea Reyes Zuniga